



File No.: EXP202204530

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 08/03/2022, a complaint was received by this Agency presented by A.A.A. (hereinafter, the complainant) for a possible violation of the provisions of personal data protection regulations.

The complaint document is a reproduction of a report filed by the complainant in which the following is stated:

“Complaint for mass dissemination of a video recorded without the victim's consent, on social networks (Facebook, Instagram, etc.) and WhatsApp.

[...]

FIRST.- On January 6, 2022, around 3 AM, my represented party was at ***ADDRESS.1, with his dog (...). My represented party (...) felt quite unwell due to probable alcohol consumption, which is why he had to stop (...).

SECOND.- Subsequently, and due to the video that we will indicate, apparently an unknown person approached with their vehicle driving and with their mobile phone from the driver's seat, without my represented party's consent, recorded my represented party on the aforementioned public road for a recording period of 1 minute and 35 seconds (...).

In the video, it is clearly observed how the driver of the vehicle approaches with the vehicle and records my represented party with evident bad faith, to the extent that he says (a part of what is said in the video is transcribed).

In the image, it is clearly observed how my represented party was in very poor physical condition as described above, holding onto a trash can.

We understand that the attitude of the person recording the video is entirely inconsiderate and disproportionate, laughing and mocking D. A.A.A., without any cause, and not even offering to help him in such a situation, omitting all possible assistance.

In the video, it is evident that my represented party's face is visible, being perfectly recognizable. My represented party is not a public figure.

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THIRD.- The aforementioned video has been disseminated and spread by the author, and more unknown individuals, initially via WhatsApp application both to individual users and to WhatsApp groups, but it has been published and spread on social networks: Facebook, Instagram, Twitter, and YouTube; to the extent that it has had an impact throughout the national territory (...).

Links to the disseminations on various social networks and individuals who have carried out the mass dissemination are provided (...)

SECOND: On 19/04/2022, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the complaint presented by the complainant was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

After having made a request for the removal of the content still published to the party complained against, on 06/05/2022 and 07/06/2022, the content was only removed from the Facebook social network address ***URL.1. Likewise, on 07/07/2022, a resolution was issued adopting a provisional

measure requiring the party complained against to remove and block the reported content. In response to the urgent removal precautionary measure issued on 17/08/2022 to the service provider of the Facebook social network, on 12/09/2022 it was verified that the video mentioned in the complaint at the internet address ***URL.2 has been deleted.

FOURTH: On 23/12/2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the party complained against, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

The initiation agreement was notified to the party complained against by postal mail on 17/01/2023, as evidenced by the acknowledgment of receipt in the file.

After the period granted for the submission of allegations, this Agency has not received any allegations from the party complained against.

FIFTH: On 08/05/2023, the instructing body prepared a resolution proposal in which it was proposed to sanction the party complained against with a fine of €10,000.00 for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

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3/9

The resolution proposal was notified to the respondent party via postal mail on 05/06/2023, as evidenced by the acknowledgment of receipt in the file. After the period granted for the submission of allegations had elapsed, this Agency has not received any allegations from the respondent party.

PROVEN FACTS

FIRST: On 07/01/2022, the respondent party published on their Facebook profile, under the title "****TITLE.1", a video of the claimant, without their consent, in which the claimant appears to be in an evident state of intoxication. The duration of the video is one minute and thirty-five seconds.

SECOND: On 20/04/2022, it was verified that, of all the links reported by the claimant, the video subject to the complaint is only available on the respondent party's Facebook profile. Specifically, at the following internet addresses:

- ***URL.1

- ***URL.2

THIRD: On 12/09/2022, it was verified that META PLATFORMS IRELAND LIMITED (through FACEBOOK SPAIN, S.L.) has removed the video in question from the social network Facebook and, specifically, from the links mentioned above.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

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"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment or combination, restriction, erasure, or destruction;"

In this case, according to Article 4.1 of the GDPR, the physical image of a person is personal data. Thus, its inclusion on websites, forums, publications that identify or make identifiable a person constitutes processing of personal data.

III

Lawfulness of the processing of personal data

The principles governing processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;

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5/9

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provisions of item f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

Furthermore, Recital 40 of the aforementioned GDPR states that "For the processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract."

In light of the documentation in the administrative file, it is evident that the respondent disseminated through social networks a video of the complainant, without a legal basis as provided in Article 6.1 of the GDPR that legitimizes the processing of their image (the complainant expressly indicating that they

do not have their consent), in which they appear in a delicate situation. Throughout the one minute and thirty-five seconds that the video lasts, the affected person's face can be fully seen, allowing for clear identification.

Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringement classified in Article 83.5.a) of the GDPR which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)

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6/9

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a limitation period of three years:

a) (...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met. (...)"

V

Sanction for the infringement of Article 6.1 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the data controller or processor to bring processing operations into compliance with the provisions of the GDPR, where appropriate, in a specified manner and within a specified time - Article 58.2 d).

In this case, considering the facts presented, it is deemed that the appropriate sanction to impose is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding whether to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;

b) the intentionality or negligence in the infringement;

C/ Jorge Juan, 6

- c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;
- e) any previous infringements committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42;
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, regarding point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

Aggravating circumstances are:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damages suffered; the claimed party publicly discloses the personal data of the claiming party, as it disseminates a video of them in a delicate situation mocking them, allowing for their unique identification. (art. 83.2.a) GDPR).
 - The conduct of the infringer reflects a clear intention to denigrate the claiming party, as they disseminate the video through social networks where dissemination is immediate (art. 83.2.b) GDPR).
- The balance of the circumstances considered, with respect to the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for a fine of €10,000.00 (ten thousand euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.b) of the GDPR, a fine of €10,000.00 (ten thousand euros).

SECOND: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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9/9

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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